

Dinesh Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 11 December 2019 · WRIT - C No. - 40847 of 2019 · **Writ disposed; petitioner relegated to clause 6.5; coercive action stayed seven weeks.**

HEADNOTE

A consumer who disputed the correctness of an electricity bill and sought certiorari to quash a tehsildar recovery certificate for Rs. 2,90,056 was not entertained in writ, the Court pointing him to the statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. If he approached the appropriate authority within two weeks with a certified copy of the order and the writ papers, the authority was to decide the application in accordance with law by a speaking order after hearing, within four weeks. Coercive action was stayed for seven weeks.

FACTUAL SUMMARY

Dinesh Singh petitioned the Allahabad High Court seeking certiorari to quash a recovery certificate dated 27 May 2019 issued by the Tehsildar, Tehsil and District Auraiya, for Rs. 2,90,056 as an electricity bill. He disputed the correctness of the bill raised against him. Counsel for the petitioner and for the Electricity Department were heard. The Division Bench disposed of the writ without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy under clause 6.5

HOLDING

Where the petitioner disputes the correctness of an electricity bill and seeks to quash a tehsildar recovery certificate issued on that bill, the High Court will not entertain the writ because of the statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may approach the appropriate authority under clause 6.5; if he does so within two weeks enclosing a certified copy of the order and the writ papers, the authority is to consider and decide the application in accordance with law by a speaking order after hearing, within four weeks of receipt. Coercive action was stayed for seven weeks. ¶ 1

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman The Court treated a challenge to the correctness of an electricity bill, including a tehsildar recovery certificate for that bill, as a clause 6.5 matter and refused to entertain the writ. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The petitioner was left to take recourse under clause 6.5; if he approached the appropriate authority within two weeks, the application was to be decided by a speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL OF RS. 2,90,056 AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 27 MAY 2019

Merits not examined in view of the clause 6.5 remedy. ¶ 1